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File No.: EXP202213728

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On December 16, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF \*\*\*NIF.1 (hereinafter, the respondent).

The reasons for the complaint are that on September 28, 2022, the respondent and ex-partner of the complainant uploaded sexual and personal content defaming the complainant on YouTube and ForoCoches at the link \*\*\*URL.1, titled: "(...)".

The complainant requests the removal and the adoption of measures to prevent a creative video recorded by her ex-partner from being uploaded to the internet again, in which the development of their romantic relationship is narrated, with real images, in which the complainant's face currently appears pixelated (although not her body) and her voice, which has not been distorted, is heard, including some scenes of sexual content.

The complainant states that the respondent has been reported for uploading sexual content and for defamation.

Relevant documentation provided by the complainant:

- Screenshot from a mobile device showing the playback of a video that could be the claimed video.

SECOND: On December 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

Prior to the actions carried out, it should be noted that the complainant states in her complaint that she has exercised the right of rectification, but does not clearly inform whom she addressed, nor does she present any evidence of this fact from which responsibilities could arise for the neglect of this right.

There is also no record in the documentation submitted with the complaint regarding the report to which the complainant refers.

The existence of the video mentioned in the complaint was verified at the internet address \*\*\*URL.1, where the complainant's face currently appears pixelated (although not her body) and her voice, which has not been distorted, is heard, including some scenes of sexual content. However, no related video could be found in the "Forocoches" forum.

A precautionary measure for content removal was issued to GOOGLE IRELAND LIMITED, and on January 4, 2023, this Agency received a letter from this entity informing that they had proceeded to remove the requested content in application of the Privacy Guidelines and Community Standards of YouTube and in accordance with the issued agreement.

On February 8, 2023, it was verified that the content had been removed. A diligence with this verification is incorporated into these proceedings.

The complainant herself identifies the author of the facts as her ex-partner, a matter that is verified in the video included in this file and by the name and surname of the YouTube profile.

FOURTH: On June 26, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established

in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which he states the following:

"The images are the result of the materialization of a FICTION project carried out by mutual agreement between the complainant and the now-respondent for the recording of videos about their relationship and their sailing trips, with the aim of editing and publishing them. In 2022, after the romantic relationship between the complainant and the respondent had ended, Ms. A.A.A. carried out the editing and publication of some videos. The respondent did the same by editing and publishing a video, about four minutes long, narrating a fictional story, using the same audiovisual material employed by the complainant.

It is true that the complainant has filed a report for the uploading of images with sexual content and for defamation, which has been processed in the Court of Violence against Women in Marbella; and it is equally true that, after the investigation of the indicated report, the Court reached the conviction that it should agree to archive said case. But it is necessary to highlight that the Court did not agree to archive the case due to formal defects but rather because it considered substantive issues to be proven, as transcribed below:

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a) The indispensable requirements of being in the presence of secret or intimate material would be lacking, as well as the requirement of revealing it without consent, since this is implicit in the recording and publication agreement. In fact, Ms. A.A.A. acknowledged in her statement that she had published recorded material in the same project.

b) The subjective element of the crime is not present, which is the intent to offend or the intent to injure, since it is a work of fiction in which both are the characters. I attach to this document Order XXX/20XX from the Court of Violence against Women of Marbella, which agrees to archive the case initiated by the complaint filed by the claimant.

Based on the above, we consider, as evidenced by the judicial resolution provided, that we are faced with the lawful scenarios contemplated in sections a) and b) of paragraph 1 of Article 6 of the GDPR, given that there was consent from the claimant and that the images are the result of a consensus or contract between her and the respondent, since, although it was verbal in nature, its existence has been evidenced by the express acknowledgment made by the complainant in court. Therefore, there is no reason to consider the reported conduct as sanctionable before this Agency.

Finally, it is important to clarify that in the editing of the images, care is taken at all times to preserve intimate parts; the scenes of "fictional" sex are projected through back shots and pixelated. It is frankly impossible for anyone to identify the claimant with the images under those conditions; this was the intention behind the editing of the same.

SIXTH: On July 3, 2023, the instructor of the procedure agreed to carry out the following evidence, considering the complaint filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of preliminary investigative actions that are part of procedure AI/00443/2022, as reproduced for evidentiary purposes. Likewise, the allegations regarding the initiation agreement of the referenced sanctioning procedure, presented by B.B.B., and the documentation accompanying them are considered reproduced for evidentiary purposes.

SEVENTH: On July 19, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction B.B.B., with NIF \*\*\*NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €10,000 (ten thousand euros).

EIGHTH: On August 9, 2023, the respondent regarding the reported facts stated the following:

"This is not a home video of stolen private images; it is a project of audiovisual fiction carried out with prior consent and for commercial and/or professional promotion purposes, as stated in the proven facts of the resolution proposal. Both parties published images at our convenience.

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The claimant had consent for the publication of the images, which constitutes a legitimate basis for processing in accordance with Article 6.1 of the General Data Protection Regulation (hereinafter, GDPR). If consent had not been obtained, it would not have needed to be withdrawn, as stated in fact number 3 of the proven facts of the proposed Resolution. Later on, the issue of whether the consent was withdrawn by the claimant will be addressed, for which there is no evidence.

Moreover, the video is the result of a contract between the claimant and the respondent that establishes rights and obligations freely agreed upon and consented to by the parties. There is no doubt about the existence of a contract, as it is expressly recognized by the claimant and is thus reflected in the proven facts of Order XXX/20XX from the Court of Marbella specialized in violence against women. We would be looking at another basis for legitimizing the processing, as outlined in Article 6.1, a) and b) of the GDPR.

It is objectively evident that in the brief two or three tenths of a second during which a body is projected from behind with a pixelated face, it is frankly impossible to recognize the model in the fictional scene shown, as she cannot be identified or identifiable. It should be noted that the face was pixelated in response to the complaint of Ms. A.A.A., who did not request that any other part of the body be pixelated, although the agreement between the parties involved covered the projection without further need for concealment.

The respondent acted at all times empowered by the commitment reached through a contract, the existence of which has been acknowledged by the claimant and is reflected in the proven facts of the judicial resolution submitted along with the allegations made against the initiation agreement, which was issued by the Court of Marbella specialized in violence against women.

In the fourth ground of the proposal document, it is stated verbatim: "It is evident that Ms. A.A.A. and Mr. B.B.B., being a couple, mutually agreed to record videos about their relationship and their sailing trips, with the aim of editing and publishing them...". From these statements, it can be inferred that there was therefore consent and a verbal agreement between the two parties.

The claimant indicated, and this is proven in fact THREE of the Initiation Agreement of the sanctioning file, that she exercised the right of rectification but did not withdraw her consent nor opposed it. I, upon request, proceeded to modify and/or rectify the images so that she could not be identified, but at no time did she withdraw her consent, and there is no evidence of this.

This is a commitment reached by the claimant and the respondent that was in effect at the time of the publication of the video and which remains in effect today because there has been neither an agreement between the contracting parties nor any formal pronouncement that has resolved the contract reached between them.

From the statements made and the proven facts, it can be inferred that at no time have I violated Article 6 of the GDPR, as there was consent and a contractual relationship between both parties. I modified the images when requested, and it has not been proven that the claimant expressly revoked the consent.

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"neither expressed opposition nor exercised the right of opposition, which is why I consider the proposed sanction to be unlawful."

From the actions taken in the present procedure and the documentation in the file, the following have been established:

#### PROVEN FACTS

FIRST: The respondent and former partner of the claimant uploaded sexual and personal content of

the claimant on YouTube at the link \*\*\*URL.1.

SECOND: The images are the result of the realization of a FICTION project carried out by mutual agreement between the claimant and the respondent for the recording of videos about their relationship and their sailing trips, with the aim of editing and publishing them.

The claimant sues the respondent for uploading images with sexual content and for defamation before the Court of Violence against Women in Marbella, which archives the case considering that the essential requirements of being in the presence of secret or intimate material are lacking, as well as revealing it without consent, since this is implicit in the recording and publication agreement, and furthermore, there is no subjective element of the crime, that is, the intent to offend or injure, since it is a fictional story in which both are the characters.

THIRD: The ruling of the Court of Violence against Women in Marbella states that the claimant withdrew her consent for the dissemination of the video subject to this claim, in which her naked body can be seen and her voice can be heard.

## LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Likewise, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or camcorders are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful, indicating the following:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or

by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or camcorder systems for the purpose of ensuring the safety of persons and property, as well as their facilities."

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In the present case, the uploading of sexual and personal content defaming the claimant on YouTube at the link \*\*\*URL.1.. has been confirmed.

The defendant, in their defense, alleges that the images in question are the result of the materialization of a FICTION project carried out by mutual agreement between the claimant and the current defendant for the recording of videos about their relationship and their sailing trips, with the aim of editing and publishing them.

Furthermore, it states that although the uploading of images with sexual content and for defamation has been processed in the Court of Violence Against Women in Marbella, it has been agreed to archive the case.

In this regard, this Agency must indicate that the order XXX/20XX of April 10, 2023, issued by the Court of Violence Against Women No. 1 of Marbella in its first legal reasoning establishes the following:

"From the proceedings, in particular, the statements of both parties, along with the videographic documentation, it is evident that Ms. A.A.A. and Mr. B.B.B., being a couple, mutually agreed to record videos about their relationship and their sailing trips, with the aim of editing and publishing them. In 2022, after their sentimental relationship had ended, Ms. A.A.A. carried out the editing and publication of some videos, the content of which is not included in the records. Mr. B.B.B. did the same, editing and publishing a video, about four minutes long, narrating a fictional story based on the same audiovisual material. However, once she became aware of and viewed what he had published, she expressed her disapproval of the publication, as she could be recognized, which led Mr. B.B.B. to retouch the editing and pixelate Ms. A.A.A.'s face, maintaining the publication.

Based on the facts succinctly expressed, it is not considered that they fit within the crime of disclosure of secrets under Article 197.2 of the Penal Code, nor in the crime against honor under Article 208 of the Penal Code. In the first case, the essential requirements of being in the presence of secret or intimate material, as well as revealing it without consent, are lacking, since this is implicit in the agreement for recording and publication. In fact, Ms. A.A.A. acknowledged in her statement that she had carried out the publication of material recorded in the same project. In the second case, the subjective element of the crime is not present, which is the intent to offend or injure, since it is a fictional story in which both are the characters.

In summary, the perpetration of any of the crimes that have given rise to the formation of the case is not adequately justified, so in accordance with the provisions of Article 641-1º, in relation to Article 779.1-1º of the Criminal Procedure Law, it is appropriate to decree the provisional dismissal of the proceedings. The above will be carried out with the reservation of civil actions in favor of Ms. A.A.A., under the protection of Organic Law 1/1982, on the protection of the right to honor, intimacy, and one's own image."

Therefore, despite the archiving of the complaint filed with the Court of Violence Against Women No. 1 of Marbella, it must be taken into account that although said complaint is archived for not meeting the requirements to incur in a crime of disclosure of secrets or against honor in accordance with Article 197.2 and 208.

of the Penal Code, such filing is carried out, “with reservation of civil actions in favor of Mrs. A.A.A., under the Organic Law 1/1982, for the protection of the right to honor, privacy, and one's own image.” It should be noted that the existence of a filing of the complaint submitted to the Court of Violence against Women number 1 of Marbella does not imply that one cannot be sanctioned for the possible violation of the fundamental right to the protection of personal data, since the judge has assessed from a criminal perspective whether the necessary elements to incur a crime are present, while the AEPD protects a different legal interest, evaluating whether the protection of personal data has been violated. Furthermore, it must be taken into account that the order itself highlights the lack of subsequent consent from the complainant in the following manner: “once she became aware of and viewed what was published by him, she expressed her disagreement with the publication, as she could be recognized, which led Mr. B.B.B. to edit and pixelate the face of Mrs. A.A.A., maintaining the publication.”

In this regard, it should be noted that, even if there was a prior agreement between the parties for the dissemination of the images, the complainant has the right at any time to revoke her consent in accordance with Article 7.3 of the GDPR, which regulates the conditions for consent and states the following:

“The data subject shall have the right to withdraw his or her consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.”

Therefore, upon revoking her consent for the dissemination of the video, and the respondent knowing that she has withdrawn her consent, the respondent must cease its dissemination, as it is not sufficient to have pixelated the complainant's face, since in that video not only her face is disclosed but also her naked body is visible and her voice is heard.

By not ceasing the dissemination of the video despite the revocation of the complainant's consent, and knowing that the complainant has withdrawn her consent, it implies that the respondent has processed the complainant's personal data (her body and her voice) that would allow for her identification, without legitimate grounds for doing so, since the complainant has revoked the consent she had given to the respondent for that purpose, as noted in the order issued by the Court of Violence against Women of Marbella in its first legal reasoning, transcribed in this legal basis.

In light of these facts, it is considered that the actions described, that is, posting on the internet address \*\*\*URL.1 a video in which, although the complainant's face is pixelated, her body can be seen and her voice can be heard, without the complainant's consent, taking advantage of its sexual content to defame the complainant, violates what is established in Article 6 of the GDPR, indicated in legal basis III, which could constitute the commission of an infringement classified in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or,

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in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year statute of limitations,

which involve a substantial violation of the articles mentioned therein and, in particular, the following:  
b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

V

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures that they have implemented pursuant to Articles 25 and 32;

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- e) any previous infringement committed by the controller or processor;
  - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
  - g) the categories of personal data affected by the infringement;
  - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
  - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
  - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
  - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case on the respondent as responsible for an infringement

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classified under Article 83.5.a) of the GDPR, the following aggravating factors are considered concurrent:

- Severity of the facts, as the respondent is publicly disseminating a private video featuring the naked body of the claimant and her voice, without having her consent for such dissemination.
- Intentionality in the action, as the video was intentionally published.
- The type of data processed, the voice and body of the claimant, in a video of a sexual nature.

It is appropriate to scale the sanction to be imposed on the respondent and set it at the amount of €10,000 in accordance with Article 58.2 of the GDPR.

Furthermore, according to the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for scaling the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF \*\*\*NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €10,000 (ten thousand euros).

SECOND: TO RENDER DEFINITIVE the PROVISIONAL MEASURE agreed on December 29, 2022, during the preliminary investigation proceedings, by which the withdrawal of the video referred to in this procedure was ordered.

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: To warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public



once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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